

considerations, namely what the term "poly"-olefin" in the passage concerned meant. The respondent's allegation that it had to be read as "poly-alphaolefin", such that the corresponding feature in claim 1 as granted was not based on the application as filed, was not an argument but rather an allegation of a fact, namely, the fact that the skilled person would have interpreted the term "poly"-olefin" in this passage of the application as filed as to directly and unambiguously mean "polyalphaolefin". Therefore, the respondent's late-filed objection included a new allegation of fact. Thus, under Art. 114(2) EPC the board had the discretion not to admit the respondent's late-filed objection. The board held that this finding was in agreement with T.1914/12, T.635/14 and T.1381/15.

The board in T.482/18, commenting on T.1914/12 and T.701/97 when applying Art. 13 RPBA 2020, found that the boards in those cases seemed to have presumed that the content of the application as filed and of the patent as granted had to be treated as facts that all remained at issue at all times in the proceedings. It endorsed the view taken in T.1914/12 that Art. 114(2) EPC 1973 (Art. 114 EPC not amended when the EPC was revised) was not a basis for refusing to admit arguments and that the patent documents in a case file covered a – usually large – number of individual facts. However, it expressly disagreed with the position that all those facts were at issue on appeal automatically, i.e. without being explicitly asserted, and so could have legal implications at any time. It considered that position to be at odds with the nature of judicial proceedings, such as those before the EPO boards of appeal, which were of the kind proper to an administrative court, since such proceedings involved deciding on a factually supported case and so depended on the assertion of facts. If an appellant failed to assert the various facts relied on in time, they could be disregarded under Art. 114(2) EPC 1973.

5.10.2 Whether amendment or merely elaboration on existing case

In T.607/10 the board considered that, in deciding whether a new argument has the effect of amending a party's case within the meaning of Art. 13(1) RPBA 2007, it must be established on a case-by-case basis whether the new argument is a departure from, or just a development of, the original arguments filed with the grounds of appeal or the reply thereto. In the case at hand, the new argument could not be seen as merely a further development or elaboration of the opponent's previous position. The new analysis was based on a different choice of the closest prior art. This new argument had therefore to be seen as constituting an amendment to the opponent's case within the meaning of Art. 13(1) RPBA 2007, which might be admitted and considered only at the discretion of the board. In the case at hand, the board, in the exercise of its discretion, decided to admit the new arguments put forward by the opponent. See also T.1348/11.

In T.124/16 the board found that changing the starting point for the line of argument on inventive step amounted to an amendment of the case.

5.10.3 New arguments and lines of attack admitted

During the oral proceedings in T.55/11, when discussing inventive step of granted claims 1 and 20 starting from document D1 and taking into account document D13, the appellant (opponent) argued for the first time that the subject-matter of said claims also lacked an

inventive step starting from document D13 and taking into account document D1. The board admitted the new arguments. Documents D1 and D13 had both been before the opposition division and had been extensively discussed throughout the proceedings.

In T 161/09 the board decided to use its discretionary power to admit the appellants' first line of argument to the proceedings, in support of their objection of lack of inventive step, despite these submissions having been made only during the oral proceedings. In the view of the board these submissions did not alter the legal and factual framework of the proceedings. In T 112/13, too, the board admitted a more detailed and expanded line of argument at the oral proceedings under Art. 13(1) RPBA 2007 because it did not substantially amend the case as set out in its statement setting out the grounds of appeal.

In T 524/12 the case made by the appellant (opponent) was an extension of the case it had made before the opposition division. Since, in essence, similar features were discussed, and the lines of argument put forward were largely those that had already been discussed, the appellant was not making a substantially new case, but was simply basing the case it had made in support of its objection before the opposition division partly on new arguments. Art. 12(4) RPBA 2007 did not provide for not admitting mere arguments.

See also T 704/06 (ex parte), T 1941/10, T 216/10 and T 174/12, where the late-filed arguments were also admitted into the proceedings. See also T 1348/11.

5.10.4 New arguments and lines of attack not admitted

In some decisions it was held that new arguments first put forward at the oral proceedings without any reasonable explanation or justification were to be regarded as late filed and not admitted into the proceedings (T 1069/08, T 775/09, T 1621/09, T 810/12).

In T 1621/09 the board, in the exercise of the discretion under Art. 13 RPBA 2007, decided however not to allow the appellant to amend its case, inter alia because the new argument amounted to a new way of putting the appellant's case on novelty and was raised at the last stage of the appeal, namely during oral proceedings.

In T 1069/08 it was only at the oral proceedings that the appellant (opponent) asked the board to be allowed to present its arguments on the lack of obviousness of the claimed subject-matter. The board refused this request, pointing out, among other things, that the appellant could, and indeed should, have considered that the board might reach the same conclusion as the opposition division as regards Art. 100(b) EPC and, if it wished the board to consider a new argument, should have set it out, at the very latest, in its reply to the board's communication.

In T 1761/10 the board also decided not to admit the new inventive step attack submitted at oral proceedings. The appellant's attack raised complex new issues and oral proceedings would have had to have been adjourned in order to give the board and the respondent sufficient time to address these issues (see also T 1226/12, T 2602/12 and T 1744/14).

In T 1019/13 a new inventive-step attack was made for the first time during the oral proceedings before the board. In the written proceedings, the opponents made more than ten different inventive-step attacks based on various different combinations of documents. In such a situation, the proprietor could not be expected to extend its preparation to cover yet more inventive-step attacks, based on new combinations of documents, which opponents might make during the oral proceedings.

In T 647/15, by choosing to keep silent until the oral proceedings and make its arguments based on documents D10 and D11 only then, the opponent had surprised the board and the other parties, thereby undermining those parties' right to comment as appropriate in an adversarial procedure.

In T 603/14 the board exercised its discretion not to consider the late-filed objection of lack of inventive step in view of D1 and D3. The appellant raised this objection for the first time in the oral proceedings before the board. The documents formed part of the appeal proceedings. However, they had up to that point only been used to support objections of lack of novelty of claim 1 and claim 25. At least the allegation that they led, in combination, to a lack of inventive step was to the board a new fact. The appellant did not present a convincing justification for the late submission of this alleged new fact. The board held that admittance of the objection at this late stage would therefore not have respected the required procedural efficiency. Even if one accepted that D1, having been cited to support an objection of lack of novelty, could have been expected to be used as a starting point for an objection of lack of inventive step, the other party could not be expected to anticipate any arbitrary combination of D1 with other documents on file, such as D3, to be introduced into the proceedings. Furthermore, a document useful for assessing novelty is not necessarily a legitimate choice as closest prior art; see also T 181/17.

Also in T 775/09, T 1098/11, T 2091/12, T 46/13, T 221/13, T 419/14, T 988/14, T 73/15, T 392/16, T 1684/18 the board did not admit the new lines of attack on inventive step.

In T 1890/13 document D28 was initially filed with the notice of opposition. However, it was discussed neither during the oral proceedings before the opposition division nor in the impugned decision. It was only at the oral proceedings before the board that the appellant argued for the very first time that D28 was extremely relevant for the assessment of inventive step. The board held that this new line of argument was submitted at a very late stage in the overall proceedings and refused the appellant's request that D28 be introduced into the appeal proceedings under Art. 13(1) RPBA 2007, for the following reasons: the late substantiation of D28 was not an appropriate and immediate reaction to unforeseeable developments in the proceedings, the teaching of D28 was not prima facie more relevant than the other prior art documents on file; admitting into the appeal proceedings such a new line of argument based on D28 would run counter to the principle of procedural economy and fairness.

In T 1381/15 the board identified a bundle of new (pieces of) evidence and new (allegations of) facts used to formulate a new objection of lack of sufficiency of disclosure (a new attack). However, it did not consider this specific objection to be based on facts already in the proceedings (see T 1914/12). The newly raised objection, based on alleged

discrepancies between the application at issue and the priority documents, was therefore not merely an argument, which could be made at any time. In view of the extremely late stage reached in the proceedings and the complexity of the new objection, the board exercised its discretion under Art. 13(1) RPBA 2007 and Art. 114(2) EPC not to admit this new objection into the proceedings.

In T 47/18 it was only after the parties had been summoned to oral proceedings that the opponent raised objections under Art. 84 and 123(2) EPC. The board stated that the objections in question also did not merely constitute a new argument (T 1914/12) because they went beyond submissions serving to underpin the facts, evidence and grounds filed in good time. Rather, they were based on new legal grounds (G 4/92, OJ 1994, 149) that had not been addressed before in the appeal proceedings. The board pointed out there was no cogent reason to raise these objections at such a late stage of the proceedings, i.e. only about two months before the oral proceedings before the board.

In T 1167/13 the appellants had raised in their statement of grounds of appeal an objection under Art. 100(b) and 83 EPC that the person skilled in the art could not carry out the invention over the whole range claimed. The board concluded that the objection had been raised for the first time in the statement of grounds of appeal and amounted to an alleged new fact within the meaning of Art. 114(2) EPC and Art. 12(4) RPBA 2007 rather than an argument of the sort that could be presented at any time during the proceedings.

5.10.5 New documents used to back up arguments

Filing with the statement setting out the grounds of appeal new documents reinforcing the line of attack already taken before the department of first instance had to be considered as the normal behaviour of a losing party and did not constitute an abuse of procedure (T 113/96, T 1034/01, T 1177/04, T 1267/05).

In T 875/06 the board found that the additional evidence D14 and D15 did not change the appellant's case but simply backed up the arguments made previously because these documents were more relevant with regard to the cited aspects of the invention than the documents already entered into the proceedings. Since the consideration of D14 and D15 did not significantly alter the legal framework and facts of the case in respect of the first-instance proceedings, the board admitted these documents into the proceedings under Art. 13(1) RPBA 2007. See also T 113/96 and T 426/97.

5.11. Article 12(4) RPBA 2007

5.11.1 General principles – substantiation requirement – duty to facilitate the first-instance proceedings

Art. 12(2) RPBA 2007 required (as does Art. 12(3) RPBA 2020 now) that the statement of grounds of appeal contain a party's complete case. In accordance with Art. 12(4) RPBA 2007, the boards **as a rule** took into account everything presented by the parties under Art. 12(1) RPBA 2007 if and to the extent that it related to the case under appeal (condition not met in e.g. T 2182/17) and met the requirements in Art. 12(2) RPBA 2007. Requests

which had not been adequately substantiated in the statement of grounds of appeal or the reply were refused under Art. 12(2) and (4) RPBA 2007, in e.g. T 1855/16, T 2682/16 and T 716/17. On the substantiation requirement, see also chapter V.A.5.12.6 "Unsubstantiated requests").

However, according to Art. 12(4) RPBA 2007 (which remains applicable in some transitional cases; see chapter V.A.4.3.2), the boards had the **discretionary power** to hold inadmissible facts, evidence and requests which could have been presented or were not admitted in the first instance proceedings. Art. 12(6) RPBA 2020 takes up these aspects of Art. 12(4) RPBA 2007 and the established case law under this provision (see CA/3/19, explanatory notes to Art. 12(6) RPBA 2020; see also chapter V.A.4.3.6 and V.A.4.3.7 on the case law under new Art. 12(6) RPBA 2020).

In several decisions, the boards cited the principles developed by the Enlarged Board of Appeal in G 9/91 and G 10/91 (OJ 1993, 408, 420) for the inter partes appeal procedure provided for in the EPC. Art. 12(4) RPBA 2007 is consistent with the principles developed by the Enlarged Board in relation to the application of Art. 113 and 114 EPC in opposition-appeal procedures (T 2102/08). The boards of appeal thus retain, as a review instance, discretion to refuse new material, including requests (claim sets) not submitted during opposition proceedings (T 240/04, T 1705/07, T 23/10, T 1525/10). This ensures the fair and reliable conduct of the judicial appeal proceedings (T 23/10, T 1165/10, T 301/11). This has also been confirmed by the Enlarged Board of Appeal (R 10/09, R 11/11).

Given that the aim of opposition-appeal proceedings is to obtain judicial review of the administrative opposition decision, it follows that the board must as a rule take their decision on the basis of the issues in dispute before the opposition division. It can be directly inferred from the above that the parties have only limited scope to amend the subject of the dispute in second-instance proceedings, and this principle is reflected in Art. 12(4) RPBA 2007. The appeal proceedings are not about bringing an entirely fresh case (T 1705/07, T 356/08, T 1067/08, T 2102/08, T 144/09, T 881/09, T 936/09, T 23/10, T 935/12, T 101/17). In T 2135/13 the board understood the expression "fresh case" as referring to a substantial change in the subject of the proceedings.

Art. 12(4) RPBA 2007 enables the boards to penalise an infringement of the **duty to facilitate the first-instance proceedings**, i.e. a failure to display due co-operation through the submission of facts, evidence and requests in the manner required up to a certain point in the proceedings, and so serves to ensure compliance with the requirement of a fair procedure and to expedite processing of the case (see also e.g. T 724/08, T 162/09, T 1953/16, T 101/17, T 2696/16). Moreover, it does not entail any arbitrary different treatment of similar cases of belated submissions which is incompatible with the procedural scheme. The duty to facilitate proceedings applies equally to opponents (with respect to the submission of their objections) and patentees (with respect to their means of defence) (T 2102/08, T 28/10, T 2117/17).

Art. 12(4) RPBA 2007 instructs us that consideration is unlikely to be given to new submissions that should have been presented in the first-instance proceedings (T 339/06, T 416/07).